Oregon Department of Human Services

Licensed Child Caring Agency Unannounced Site Visit Report

Licensee: Marion County GAP Program
Executive Director: Troy Gregg
Program Director(s): Jose Miranda
Date of Unannounced: November 7, 2022
Licensing Coordinator: Holly Ivey
Other Regulatory or Accrediting Agencies: Oregon Youth Authority

Purpose: Per OAR 413-215-0101 (1) (b) Children's Care Licensing is required to perform at least one unannounced site visit a year where children in care reside.

Previous Findings	Repeat Findings Further Action Needed	Comments
Supplemental Information Provided by CCA All required policies and procedures as identified in the "Umbrella Rules" • *Required policy revisions are stated in detail at the end of the report.	**Yes☐ No✓**	**Supplemental Information Provided by CCA** All required policies and procedures as identified in the "Umbrella Rules" • *Required policy revisions are stated in detail at the end of the report. **Policy revisions were approved by Holly Ivey, Licensing Coordinator with the Plan of Correction from the March 12, 2022, Licensing Review.**
Supplemental Information Provided by CCA All required policies and procedures as identified in "Agency Type Specific Rules" • *Required policy revisions are stated in detail at the end of the report.	**Yes☐ No✓**	**Supplemental Information Provided by CCA** All required policies and procedures as identified in "Agency Type Specific Rules" • *Required policy revisions are stated in detail at the end of the report. **Policy revisions were approved by the Licensing Coordinator with the Plan of Correction from the March 12, 2022, Licensing Review.**
Room and Space Requirements Bedrooms 413-215-0516(3) (d) Ceiling at least 90 inches(i) Beds are 3 feet apart and maintained to ensure safety	**Yes☐ No✓**	**Room and Space Requirements Bedrooms** 413-215-0516(3) (d) Ceiling at least 90 inches(i) Beds are 3 feet apart and maintained to ensure safety **An exception was granted by DHS Licensing, regarding the above stated rule and will be in effect until June 30, 2024.**

An exception was granted by DHS Licensing, regarding the above stated rule and will be in effect until June 30, 2024. See above in the exception section for more detail. There is nothing further that needs to be sent to Licensing regarding the findings.		
Medication 413-215-0551 (9) Written record of the disposal of medications is maintained and includes: (d) method • At the time of the review, nursing staff were utilizing an old disposal form that did not have the above required information. • On 6.7.2022, Jose Miranda, Program Director, sent an email to Holly Ivey, Licensing Coordinator, stating that he added a footer to the disposal log to ensure that staff utilize the most recent disposal form, and he disposed of the old form. Jose Miranda sent a disposal log to the Licensing Coordinator that will be utilized that meets all the required Licensing Rules. There is nothing further that needs to be sent to Licensing regarding this finding. DHS Licensing will monitor ongoing compliance at the 2022, Unannounced Site Inspection. REPEAT FINDING FROM JUNE 2, 2021	**Yes☐ No✓**	**Medication** 413-215-0551 (9) Written record of the disposal of medications is maintained and includes: (d) method • At the time of the review, nursing staff were utilizing an old disposal form that did not have the above required information. • On 6.7.2022, Jose Miranda, Program Director, sent an email to Holly Ivey, Licensing Coordinator, stating that he added a footer to the disposal log to ensure that staff utilize the most recent disposal form, and he disposed of the old form. Jose Miranda sent a disposal log to the Licensing Coordinator that will be utilized that meets all the required Licensing Rules. There is nothing further that needs to be sent to Licensing regarding this finding. DHS Licensing will monitor ongoing compliance at the 2022, Unannounced Site Inspection. **At the Unannounced Licensing Inspection on November 7, 2022, the Licensing Coordinator, observed the medication disposal log being utilized and verified that it met the above stated rule requirement.**
Ongoing Training 413-215-0556(4) Designated staff authorized to apply reasonable and prudent parent standard are trained in application of the standard. • Verification of the above required training was missing in some of the personnel files reviewed. • On June 8, 2022, Jose Miranda, Program Manager, sent an email to Holly Ivey, Licensing Coordinator, confirming that staff had received the required Prudent Parent Training. (One relief staff will be trained later as	**Yes☐ No✓**	**Ongoing Training** 413-215-0556(4) Designated staff authorized to apply reasonable and prudent parent standard are trained in application of the standard. • Verification of the above required training was missing in some of the personnel files reviewed. On June 8, 2022, Jose Miranda, Program Manager, sent an email to Holly Ivey, Licensing Coordinator, confirming that staff had received the required Prudent Parent Training. (One relief staff will be trained later as she is taking several months off.) There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at the 2022, Unannounced Site Inspection. **The Licensing Coordinator received verification on November 8, 2022, via email from Jose Miranda, Program Supervisor, that all the program staff**

she is taking several months off.) There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at the 2022, Unannounced Site Inspection.		**(including the above-mentioned staff whose training was 7.11.22) received the required annual training.**
Consents 413-215-0576(1) (c) Use restraint or seclusion Must specify the reasons for the intervention and how staff are trained and supervised • The consents being utilized were missing the above required information. • On May 25, 2022, Jose Miranda, Program Manager, sent Holly Ivey, Licensing Coordinator, a revised GAP Voluntary Placement Agreement. The Placement Agreement included a consent that was modified to include all the above required information. The consent meets the Licensing Rule requirement. There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at the 2022, Unannounced Site Inspection.	**Yes☐ No✓**	**Consents** 413-215-0576(1) (c) Use restraint or seclusion Must specify the reasons for the intervention and how staff are trained and supervised • The consents being utilized were missing the above required information. On May 25, 2022, Jose Miranda, Program Manager, sent Holly Ivey, Licensing Coordinator, a revised GAP Voluntary Placement Agreement. The Placement Agreement included a consent that was modified to include all the above required information. The consent meets the Licensing Rule requirement. There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at the 2022, Unannounced Site Inspection. **At the Unannounced Licensing Inspection on November 7, 2022, the Licensing Coordinator observed the consents being utilized and verified the above stated rule requirement was being met.**
***Authorizations 413-215-0576(3)* (c) Visitation resources are pre-approved** • Authorizations reviewed lacked verification of approval by the guardians for visitation resources. • On May 19, Jose Miranda, Program Manager sent Holly Ivey, Licensing Coordinator, a revised GAP Screening Form that had a line for guardian approval of visitor contacts. This meets the Licensing Rule requirements. There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at	**Yes☐ No✓**	***Authorizations 413-215-0576(3)* (c) Visitation resources are pre-approved** • Authorizations reviewed lacked verification of approval by the guardians for visitation resources. On May 19, Jose Miranda, Program Manager sent Holly Ivey, Licensing Coordinator, a revised GAP Screening Form that had a line for guardian approval of visitor contacts. This meets the Licensing Rule requirements. There is nothing further that needs to be sent to Licensing regarding this finding. DHS will monitor ongoing compliance at the 2022, Unannounced Site Inspection. **At the Unannounced Licensing Inspection on November 7, 2022, the Licensing Coordinator observed the authorization being utilized and verified the above stated rule requirement was being met.**

the 2022, Unannounced Site Inspection.		
Financial Records 413-215-0581(4) Records contain… source, purpose • The financial records forms being utilized did not have the above required information.	**Yes☐ No✓**	***Financial Records 413-215-0581(4) Records contain… source, purpose*** The financial records forms being utilized did not have the above required information. **At the Unannounced Licensing Inspection on November 7, 2022, the Licensing Coordinator observed the financial records being utilized and verified the above stated rule requirement was being met.**

New Findings from Site Visit	Comments
N/A	

Interview Summary
During the unannounced inspection Jose Miranda, Program Director, was informally interviewed, as he assisted with the walk through of the facility. At the time of the inspection the youth where at school and not available to be interviewed. Two youth were privately interviewed on the phone on November 8, 2022, by Holly Ivey, Licensing Coordinator. When asked what they appreciated most about the GAP Program the youth reported: “The kind staff, they’re pretty nice, they help. They give us everything we need, food and everything.” Both of the youth shared that they get enough food at the program and are provided daily snacks. Both of the youth shared having daily private phone contact with their approved contacts. The youth reported the following recreational activities: “Playing basketball, and cards, kickball and little games, going to a church to play in their gym, playing on the computer, and going on outings.” The youth shared that hygiene products were provided by the program if they needed them. When the youth were asked what they would change about the program, they reported: “Probably better food, they would let us watch YouTube, the other kids being respectful to each other.” Both youth shared that they felt safe at the program. When asked if they felt respected by staff at the program, one youth stated, “Yes of course.” One youth shared a disrespectful comment that he had heard that a staff member had said to two other youth in the program, which the Licensing Coordinator called into the Child Abuse Hotline on November 8, 2022. The DHS Licensing Coordinator spoke with Jose Miranda, Program Director, after the youth interview, and told him that she called the information into the hotline. OTIS Screening did not assign the concern. After the screening decision was made Jose Miranda, addressed the concern with the staff, and retrained staff on the Departments Code of Conduct.

Observations
A walk-through inspection was conducted of the program in all areas where youth were allowed access. The program was well kept and observed to be clean and in good repair. A contracted agency that works in the Marion County Detention Facility is responsible for all meals for the GAP Program, which are prepared in the detention facilities kitchen. Meals are brought from the detention center to the GAP Program. The DHS Licensing Coordinator walked through and observed the Marion County Detention Center's Kitchen where food is stored and prepared for the youth at the GAP Program. The DHS Licensing Coordinator observed food in the refrigerator, and pantry. The DHS Licensing Coordinator observed two vans that staff use to transport youth in the program. There were no deficiencies observed with the vehicles.

Corrective Actions and Timeframes:
Please submit the following to verify compliance.
Within 45 days of receipt of this report **Marion County GAP Program,** must submit a letter of verification indicating the agency is in compliance with the specific rules cited above and describing how compliance will be maintained going forward. Along with the letter of verification, the agency must submit any and all specific documentation requested in the body of this report. The letter of verification and any additional requested documents can be emailed directly to the Licensing Coordinator, Holly Ivey: **Hollyr.ivey@dhsoha.state.or.us**

Licensing Coordinator's Signature: Holly Ivey Date: 12-2-2022

Manager Review: _____ Date: 12-2-2022